

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS,
LLC,
Plaintiff,

vs.

Case No. 2015-CC-001309
Division 4

KAREN JEAN MORRIS and
ANY UNKNOWN TENANT(s)
Defendants.

FILED FOR RECORD
2016 APR -4 PM12:02
CLERK OF THE CIRCUIT COURT
MANATEE CO. FLORIDA

**AGREEMENT AND STIPULATION FOR SETTLEMENT AND
DISMISSAL**

COMES NOW, Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, by and through its attorney, WILLIAM C. PRICE, III, ESQUIRE, and Defendant, KAREN JEAN MORRIS, by and through her attorney, DEREK W. EISEMANN, ESQUIRE, and as evidenced by their signatures below, hereby agree and stipulate to settlement of the above styled cause of action, as follows:

1. KAREN JEAN MORRIS and any unknown tenant in Lot 123 of Colonial Mobile Manor shall vacate the premises as of 4:00 p.m., on March 31, 2016 and shall deliver the title to the mobile home executed by her, free and clear of all liens and all keys to the residence in her/their possession, to the Plaintiff at Lot 123 of Colonial Mobile Manor located at 900 - 9th Avenue East, Palmetto, Florida. The interior and the exterior of the mobile home shall be clean, undamaged, with all walls, windows, fixtures (except the stove) plumbing, electrical, interior walls, flooring, cabinets intact and undamaged, general wear and tear excepted.

2. Upon delivery of the mobile home and title as described above, Defendant will receive the sum of One Thousand Two Hundred Dollars (\$1,200.00) in a check drawn from

Plaintiff's Counsel's operating account made payable to KAREN JEAN MORRIS.

3. By this Stipulation, the parties agree that all monies paid into the Registry of the Court in the above styled cause shall be delivered by the Clerk of the Court to the Law Office of William C. Price, III, P.A., 522 Twelfth Street West, Bradenton, Florida, 34205.

4. The parties agree to execute a Stipulation for Dismissal of the above styled cause with prejudice, with each party bearing their own costs and attorney fees.

5. Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, and Defendant, KAREN JEAN MORRIS, shall each execute and deliver each to the other, a mutual release, with prejudice, releasing each other from all claims relating to the above referenced matter. This release shall be executed in counterparts, with each party to receive an executed release of the other.

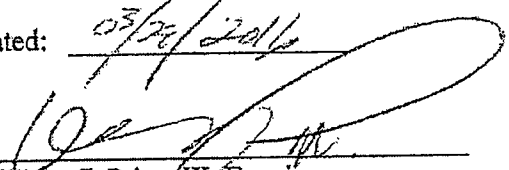
6. Defendant, KAREN JEAN MORRIS, further agrees to maintain the mobile home until the transfer of possession and title has been given to Plaintiff. Should the mobile home have any damage such as removal of walls, windows, fixtures, or any damage to the plumbing and/or cabinets (general wear and tear excluded,) said conduct shall constitute a breach of this Agreement and Stipulation. Plaintiff thereafter will be released from paying to the Defendant the sum of One Thousand Two Hundred Dollars (\$1,200.00) identified above, and this Stipulation will be deemed void.

7. Plaintiff acknowledges that there is no stove/range in the mobile home.

8. Each party shall be responsible for it/her own attorney fees and costs related to this matter, however, should any litigation regarding the enforcement of this Agreement and Stipulation arise between the parties, the prevailing party shall be entitled to costs and attorneys fees.

9. Jurisdiction of this case will be retained by the Court to enter any further orders that are deemed just and proper to enforce the terms of this Agreement.

Dated: 03/24/2016


William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 474-8001
wcprice@wcpriceiipa.com
Attorney for Plaintiff

Dated: 3/30/16


Derek W. Eisemann, Esquire
Florida Bar No. 0092735
SYPRETT, MESHAD, et. al.
1900 Ringling Boulevard
Sarasota, Florida 34236
Telephone: (941) 365-7171
deisemann@smrl.com
Attorney for Defendant

ORDER ON STIPULATION FOR SETTLEMENT

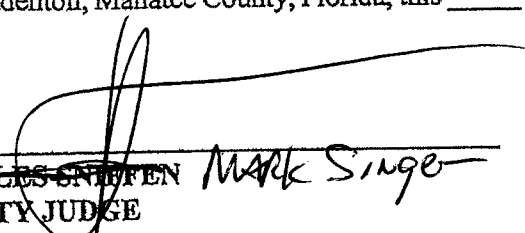
THIS MATTER having come on to be heard upon the Stipulation of the parties and the Court having considered the same and being otherwise fully advised in the premises, it is hereby,

ORDERED AND ADJUDGED:

That the Stipulation for Settlement is hereby approved as set forth therein.

The Court directs the Clerk of Circuit Court to pay to counsel for the Plaintiff in this cause, WILLIAM C. PRICE, III, P.A., at 522 Twelfth Street West, Bradenton, Florida, 34205, all of the monies paid into the Registry of the Court by the Defendant in this cause.

DONE AND ORDERED in Chambers at Bradenton, Manatee County, Florida, this 1 day of April, 2016.


~~CHARLES SNIFFEN~~
COUNTY JUDGE

Mark Singer

Copy to: William C. Price, III, Esquire
Derek W. Eisemann, Esquire